

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,
vs.

Case No.: 2018 CA 000543
Division: "E"

MARC M. MOSZKOWSKI
Defendant.

**DEFENDANT’S OMNIBUS MOTION UNDER FLA. R. CIV. P. 1.530 TO
ALTER OR AMEND THE FINAL JUDGMENT, OR ALTERNATIVELY
FOR REHEARING (COUNTS 1–7 AND 9–11)**

Defendant, pro se, respectfully moves, pursuant to Fla. R. Civ. P. 1.530, to alter or amend the Final Judgment, as to Counts 1–7 and 9–11, or, in the alternative, Defendant requests rehearing. Defendant requests decision on the papers and does not request oral argument, without prejudice to the Court’s discretion to set a hearing. If the Court declines to vacate, Defendant requests written findings with record citations. This motion seeks to correct facial and legal errors, internal inconsistencies, and omissions of essential findings that prevent meaningful appellate review and have resulted in relief not supported by competent, substantial evidence or outside the governing contracts and rules.

Filed contemporaneously is **Exhibit A, a Consolidated Index of Defendant's Submissions (2018–2025)** (8 pages), identifying 182 filings (~2,991 pages) that preserved the issues addressed herein. Defendant incorporates the Index by reference solely to demonstrate preservation and the availability of record materials should the Court elect to enter specific, element-by-element findings with record citations.

At a high level, the Judgment (i) awards relief over intellectual property that is public-domain, lapsed, or co-owned, and extends duties beyond the contract's one-year post-termination tail without a termination finding; (ii) finds breach of a non-compete/"withheld technology" without identifying any specific act within the covenant window and orders non-specific turnover contrary to Rule 1.610(c); (iii) imposes civil theft and conversion on sums for which Plaintiffs neither owned nor had an immediate right to possess, with no specific, identifiable funds and with an interest add-on lacking any dates/rates/method; (iv) reserves "fraud" damages to a later accounting without identifying a misstatement by Defendant, reliance, or actual damages; (v) compels a global accounting unmoored from custody or present ability; (vi) grants broad equitable relief without the required injunctive findings; and (vii) commands blanket turnover of "domain names,

passwords, and electronic data” in Count 11 that is facially indefinite and impossible, again violating Rule 1.610(c).

Accordingly, Defendant asks the Court to vacate or amend as specified for each count below. Where the Court is disinclined to vacate, Defendant requests that the Court enter written findings identifying, for each challenged element, the admitted evidence (by exhibit/testimony) on which the Court relies, or state that no such evidence exists. Defendant also requests that the Court strike the \$290,461.73 prejudgment interest or, at minimum, file a complete calculation schedule (start/stop dates, statutory rates by period, and method), and apply setoffs/recoupment preserved in the record.

Decision on this motion is requested on the papers. This Rule 1.530 motion is timely and tolls rendition for appellate purposes.

Count 1 — IP / “undisclosed inventions”

1. **Public-domain/lapsed/co-owned items.** The judgment “awards” items that are not enforceable rights (published applications/public domain; expired/lapsed for non-payment in Plaintiffs’ custody) and at least one **co-owned** asset.

2. **No chain-of-title/assignments.** No present-tense written assignment(s) from Defendant are identified for any live right.
3. **Contract tail ignored.** Relief “through the date of this Judgment” exceeds the agreement’s one-year post-termination limit; no termination date finding was made.
4. **Rule 1.610(c) defect.** Lack of specificity; not limited to items in Defendant’s possession/custody/control.

Requested Relief: Vacate Count 1; alternatively (i) strike “through the date of this Judgment,” (ii) find the termination date and limit any duty to ≤ 1 year thereafter, and (iii) strike public-domain/lapsed/published/co-owned items and any item lacking a written assignment.

Count 2 — Non-compete / “withheld technology”

1. **No actionable breach identified.** Findings cite “intent” and “withholding,” but identify no act of competition/solicitation/use within the covenant window; no dates, counterparties, or transactions.
2. **No termination finding.** No finding of the termination date to support any one-year tail.
3. **Rule 1.610(c) defect.** Command to return “all software, hardware, intellectual property, including customer lists, and other information”

is non-specific and not limited to items in Defendant's possession/custody/control.

Requested Relief:

Vacate Count 2; alternatively enter written findings identifying the specific acts, dates, counterparties, and contract clause(s) violated; absent such findings, vacate.

Count 3 — Civil theft (\$345,000) + trebling + \$290,461.73 “interest”

1. **Wrong pool/payee; no ownership/right to possess.** The \$345,000 came from the Timorese/founders pool ($\approx \$1,304,764.22$, $\approx 49.7\%$), while DeepGulf contemporaneously took $\approx \$1,318,169.45$ ($\approx 50.3\%$). At the time of the \$345,000 payment, DeepGulf owned no Toke stock. Any restitution (if ever due) would run to Ximenes/Timorese, not DeepGulf.
2. **No felonious intent.** The \$345,000 was authorized by the payor and used exclusively to satisfy Defendant's French tax obligations, which arose after years of unpaid salary and unreimbursed advances; at the time DeepGulf owed Defendant at least \$396,000 (salary) plus

\$150,000 (reimbursements). These facts negate the felonious-intent element.

3. **Internal inconsistency with Count 4.** Civil theft was denied on the companion \$959,764.22 but found on \$345,000 from the same distributions, without distinguishing ownership/intent.
4. **Interest add-on defective.** \$290,461.73 prejudgment interest is stated with no dates/rates/method.
5. **PX-15 — undisclosed; no foundation; due-process violation, see Exhibit B.** The Court relied on Plaintiffs' Exhibit 15 in deciding Count 3. PX-15 was not communicated to Defendant beforehand, depriving notice, confrontation, cross-examination, and rebuttal. PX-15 also lacks a competent foundation (authorship, source data, methodology, custodial chain) and is not tied to admitted business records or testimony. Reliance on PX-15 prejudiced the Count 3 liability finding and the money conclusions echoed in Counts 5–6 and in the \$290,461.73 "interest" figure. Defendant timely moved to strike PX-15 and any finding derived therefrom; that motion was summarily denied post-judgment in a two-word order ("is DENIED"). PX-15 must be excluded, and all findings relying on it vacated.

Requested Relief:

- a. Strike PX-15** and **vacate** all findings that rely on it (including Count 3, the related money figures in Counts 5–6, and the \$290,461.73 interest); or
- b.** In the alternative, order a limited evidentiary hearing confined to PX-15 foundation/cross/rebuttal; if a proper foundation cannot be laid, exclude PX-15 and vacate the affected findings.
- c. Vacate Count 3** (and trebling); strike the \$290,461.73 or require a detailed schedule (start/stop dates, statutory rates, method). Apply setoffs of \$546,000 (salary + reimbursements) before any damages.

Count 4 — Civil theft (\$959,764.22)

The Court found Plaintiffs failed to carry the clear-and-convincing burden on this tranche. That express finding underscores the same element failures required for conversion in Counts 5–6 absent additional, specific findings.

Counts 5–6 — Conversion (\$345,000; \$959,764.22)

1. **Money not specifically identifiable.** No account/date/custodian or segregation identified.
2. **No ownership/right to possess.** No finding that DeepGulf owned or had the immediate right to possess either sum when paid.
3. **Conflict with Count 4.** Conversion on \$959,764.22 (and \$345,000) conflicts with the civil-theft denial absent distinguishing findings.

Requested Relief:

Vacate Counts 5–6; alternatively enter ownership/identifiability findings (account/date/custodian) and reconcile with Count 4; otherwise vacate.

Count 7 — Fraudulent misrepresentation

1. **No misstatement by Defendant; PPM authorship.** Plaintiffs failed to identify any specific false statement by Defendant; PPM was authored by Howard.
2. **No reliance/damages.** No finding identifies who relied, when, and how, or any actual damages; damages are improperly “reserved” to a later accounting.

Requested Relief:

Vacate Count 7; alternatively identify the specific statements, speaker, recipient, reliance, and damages with record cites; if none, vacate.

Count 9 — Accounting (Toke)

Non-specific/impossible. No custodian/sources/timeframes; not limited to Defendant's possession/custody/control; demands 18 years of records held by nonparties.

Requested Relief:

Vacate Count 9; alternatively, no enforcement or contempt absent a new, specific order and a finding of present ability to comply, with a cure period.

Count 10 — Equitable/injunctive relief (if any)

Missing required findings; Rule 1.610(c) defect. No findings of irreparable harm, inadequacy of legal remedies, likelihood of success, or balance of equities; no specific acts/property described.

Requested Relief:

Vacate Count 10; alternatively enter the required findings with record cites or vacate.

Count 11 — “Domains / Passwords / Data” (Facial Invalidity, No Ownership/Control, Impossibility)

A. Rule 1.610(c) defect (lack of specificity; not self-contained).

Count 11 orders Defendant to “release and turn over all domain names, passwords, and electronic data and information ... including but not limited to [listed items]” within ten days. The command is not specific, is open-ended, and is not limited to items in Defendant’s possession, custody, or control. It identifies no accounts, systems, locations, dates, formats, or custodians. A mandatory order this vague cannot support contempt and must be vacated.

B. Plaintiffs proved no title; the only control proven is Defendant’s (for certain domains), which does not justify mandatory transfer.

The Judgment cites no registrar/registrant-of-record evidence, assignment, or chain-of-title showing Plaintiffs own any demanded domain. By contrast, the record reflects that, for certain domains,

Defendant is (and long has been) the registrant-of-record with continuous renewals over ~20 years. Plaintiffs' lack of title proof means equity cannot compel a transfer from a registrant who has never assigned those rights. And Count 11 is not limited to items in Defendant's possession/custody/control, sweeping in strings Defendant does not control and even non-assets—rendering the order both overbroad and partly impossible to perform.

C. Mislabeling and impossibility.

The list includes non-registrable strings (e.g., “www...”, “http://...”) as if they were domain names. A party cannot “turn over” what is not an asset or is not within his control. Compliance is therefore impossible as framed. Civil contempt requires a clear, unequivocal order and a finding of present ability to comply—neither exists here.

D. Pre-relationship property not subject to turnover.

The domain **pipepredictor.com** corresponds to Defendant's independent mathematical work conceived and deployed **before** 2004 (i.e., before DeepGulf, Inc. existed). Plaintiffs offered no assignment or chain-of-title placing that pre-relationship asset in

Plaintiffs. Count 11 cannot compel transfer of property never assigned to Plaintiffs.

E. No necessity; publicly available substitutes; prolonged bypass of open-market acquisition; pretext.

If Plaintiffs had any legitimate operational need, they could have acquired a substitute domain on the open market years ago—and, for years, they also bypassed the opportunity to acquire some of the very strings referenced when those were, and still are, publicly available and never controlled by Defendant. Demanding turnover from a non-owner while ignoring obvious alternatives demonstrates lack of necessity, failure to mitigate, and pretext. Equity does not issue punitive mandatory relief.

F. Risk of irreparable harm if enforced (email interception/impersonation).

Forced control or disclosure of credentials would enable interception of Defendant's communications and impersonation, harms not compensable by money and destructive of case integrity—further reason not to enforce an overbroad, non-specific order.

G. No “stolen-domain” theory; registrar records and renewal history control.

Domain “ownership” is evidenced by the registrant-of-record with the registrar. Plaintiffs offered no registrar records showing prior ownership by them or any transfer/hijack from them to Defendant. Moreover, continuous renewal-fee payments over two decades were made by Defendant, not Plaintiffs; Plaintiffs made no renewal payments on the domains they demand. Absent registrar/title proof, Plaintiffs’ suggestion that Defendant somehow “took” domains from a non-owner is factually and legally untenable and cannot support mandatory turnover

Requested relief (Count 11).

1. VACATE Count 11 in full.
2. Alternatively, (a) strike any reference to pipepredictor.com and any non-registrable strings; and (b) direct that no contempt, sanction, writ, or third-party directive shall issue predicated on Count 11 absent a new, specific order that (i) identifies the particular property with reasonable detail; (ii) is limited to items in Defendant’s possession,

custody, or control; and (iii) includes an express finding of Defendant's present ability to comply and a reasonable cure period.

3. No findings by incorporation. To the extent Plaintiffs contend they own any domain, require on-record identification of the admitted registrar/registrar-of-record proof and any assignment; if none exists, Count 11 must be vacated.

Targeted Request Under Rule 1.530 for Written Findings and Interest Schedule (on the papers)

Pursuant to Fla. R. Civ. P. 1.530, if the Court declines to vacate any count identified above, Defendant respectfully requests written, element-by-element findings with record citations and a filed prejudgment-interest schedule, as follows:

A. Counts 10–11 (equitable/mandatory relief; Rule 1.610(c)).

Within the four corners of the order: (1) the specific acts required; (2) the particular property/accounts (if any), identified with reasonable detail; (3) a limitation to items in Defendant's possession, custody, or control; and (4) if injunctive, findings of irreparable harm, inadequacy of legal remedies, likelihood of success, and balance of equities, each with record citations. If such findings cannot be made from the admitted

record, the affected relief should be vacated.

B. Counts 5–6 (conversion of money).

Findings identifying (i) the owner or party with the immediate right to possess the money at the time of the alleged conversion; and (ii) the specific, identifiable fund (account number, custodian, and date/amount).

If the fund is not specifically identifiable or ownership/right to possess is not established by the admitted record, the counts should be vacated.

C. Count 3 (prejudgment interest).

A filed Prejudgment-Interest Schedule stating the principal(s), accrual start/stop dates, statutory rate(s) by period, and the calculation method used to reach \$290,461.73. If no competent, on-record basis exists, the add-on should be stricken. Defendant also requests a brief certification that no ex parte communication supplied the figure and that all materials considered are now filed of record.

D. PX-15 (as to Count 3 and any derivative figures).

If the Court relied on PX-15, identify the specific pages/lines relied upon and the admitted evidentiary foundation (custodian/business-records basis/methodology). If no competent foundation or timely disclosure

exists, PX-15 should be excluded and any findings derived therefrom vacated.

Global relief

1. Enter the amendments/vacaturus requested above; **or** enter written, element-by-element findings with record citations.
2. Apply setoffs of \$546,000 (salary + reimbursements) before any damages.
3. **Decision on the papers (no hearing requested).**

Respectfully submitted this 8th day of September, 2025

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 8th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski



CONSOLIDATED INDEX OF DEFENDANT'S SUBMISSIONS (2018–2025)

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144	92	6	5/19/2025	DEFENDANT NOTICE OF FILING STATEMENT REGARDING THE COURT SUMMARY DENIAL OF DEFENDANT MOTION TO STRIKE COMPLAINT AS A SHAM
143	91	7	5/19/2025	DEFENDANT NOTICE OF FILING SUPPLEMENTAL STATEMENT ON THE RECORD OF CONSTRUCTIVE EXCLUSION AND TACTICAL

DOCKET	DEFENDANT	PAGES	DATE	ENTRY
				EVASION
142	90	8	5/19/2025	DEFENDANT NOTICE OF FILING STATEMENT OF IMPOSSIBILITY AND GOOD FAITH EFFORT IN RESPONSE TO ORDER TO SHOW CAUSE
141	89	4	5/18/2025	MOTION TO PRESERVE FOR APPELLATE REVIEW THE SUMMARY DENIAL OF DEFENDANT RENEWED MOTION FOR REMOTE APPEARANCE AND RELIEF FROM IMPOSSIBILITY
139	88	4	5/16/2025	RENEWED MOTION FOR REMOTE APPEARANCE, TO SUSPEND MEDIATION OBLIGATION, AND TO AVOID CONTEMPT DUE TO IMPOSSIBILITY
138	87	6	5/8/2025	NOTICE OF FILING DECLARATION REGARDING CONSTITUTIONAL STANDING AND DEFENDANT MORAL ALLEGIANCE TO FIRST AMENDMENT PRINCIPLES
137	86	4	5/8/2025	DEFENDANT MOTION TO HOLD TRIAL IN ABEYANCE UNTIL RESOLUTION OF THRESHOLD ISSUES
136	85	3	5/8/2025	DEFENDANT NOTICE OF PLAINTIFF FAILURE TO DEFINE THE ALLEGED BUSINESS OPPORTUNITY CENTRAL TO ITS CLAIMS
135	84	4	5/8/2025	DEFENDANT NOTICE OF SEVENTY-THREE UNADDRESSED SUBMISSIONS AND ONGOING PROCEDURAL DISPARITY
134	83	4	5/8/2025	DECLARATION OF IMPOSSIBILITY AND PROCEDURAL INJUSTICE IN ANTICIPATION OF CONSTRUCTIVE TERMINATION
133	82	4	5/7/2025	DEFENDANT MOTION FOR RULING ON PENDING MOTIONS AND CLARIFICATION OF RECORD STATUS
132	81	10	5/7/2025	DEFENDANT MOTION TO COMPEL INSPECTION AND PRODUCTION OF CORPORATE RECORDS PURSUANT TO § 607.1604, FLORIDA STATUTES
130	80	5	5/6/2025	DEFENDANT REPLY TO PLAINTIFF OPPOSITION TO MOTION TO DISQUALIFY PRESIDING JUDGE
128	79	41	5/6/2025	DEFENDANT NOTICE OF FILING DEFENDANT SUPPLEMENT TO MOTION TO DISQUALIFY
127	78	7	5/6/2025	DEFENDANT NOTICE OF CONCERN REGARDING OPPOSING COUNSEL COMMUNICATION WITH JUDICIAL ASSISTANT IN MATTER OF JUDICIAL DISQUALIFICATION
126	77	8	5/6/2025	DEFENDANT MOTION FOR EQUITABLE RELIEF TO LIFT FRAUDULENT LIEN AND FOR JUDICIAL FINDING OF ABUSE OF PROCESS
125	76	7	5/5/2025	DEFENDANT NOTICE OF FILING SUPPORTING DOCUMENTS TO MOTION TO DISQUALIFY PRESIDING JUDGE
124	75	8	5/5/2025	DEFENDANT MOTION TO DISQUALIFY PRESIDING JUDGE AND FOR REASSIGNMENT TO A DIFFERENT DIVISION
123	74	19	5/5/2025	DEFENDANT NOTICE OF FILING DEFENDANT DECLARATION FOR THE RECORD REGARDING JURISDICTION, DOMICILE, AND STANDING
122	73	11	5/5/2025	DEFENDANT NOTICE OF FILING DECLARATION IN SUPPORT OF FILING EXHIBIT BB
121	72	5	5/5/2025	DEFENDANT NOTICE REGARDING JURISDICTIONAL MANIPULATION AND THE DESTRUCTION OF DIVERSITY
	71	3	5/5/2025	LETTER TO BRADEN K. BALL
120	70	10	5/1/2025	DEFENDANT NOTICE OF RECORD SILENCE AND REQUEST FOR JUDICIAL CLARIFICATION
119	69	7	4/25/2025	NOTICE OF FILING DEFENDANT MOTION FOR PROTECTIVE ORDER OR RELIEF FROM ENFORCEMENT OF MEDIATION PAYMENT PENDING TRIAL PREPARATION
	68	5	4/24/2025	LETTER TO MEDIATOR

DOCKET	DEFENDANT	PAGES	DATE	ENTRY
118	67	5	4/24/2025	NOTICE OF FILING DEFENDANT OBJECTION TO ORDER IMPOSING MEDIATION FEE
117	66	8	4/22/2025	DEFENDANT NOTICE REGARDING PLAINTIFF FAILURE TO DESCRIBE THE ALLEGED \$1,304,764.22 "BUSINESS OPPORTUNITY"
116	65	3	4/21/2025	FORMAL DEMAND FOR INSPECTION AND ELECTRONIC DELIVERY OF CORPORATE RECORDS
115	64	9	4/21/2025	FORMAL DEMAND FOR ADVANCEMENT OF LITIGATION EXPENSES
114	63	10	4/21/2025	DEFENDANT NOTICE FOR THE RECORD REGARDING CONTRADICTIONARY ASSERTIONS OF DIRECTOR STATUS AND RESULTING FRAUD ON THE COURT
113	62	6	4/21/2025	NOTICE OF FILING ADDENDUM TO DEFENDANT NOTICE OF PROCEDURAL INCONSISTENCIES AND GOOD FAITH PARTICIPATION
112	61	6	4/21/2025	NOTICE OF FILING DEFENDANT NOTICE REGARDING PROCEDURAL INCONSISTENCIES AND GOOD FAITH PARTICIPATION
111	60	3	4/21/2025	NOTICE OF PRESERVATION OF UNREFUTED AFFIDAVITS FILED JANUARY 21, 2025
110	59	4	4/18/2025	DEFENDANT MOTION FOR RECONSIDERATION OF APRIL 17, 2025 ORDER
108	58	4	4/17/2025	DEFENDANT RESPONSE TO PLAINTIFF MOTION FOR THE COURT TO ENTER AN ORDER TO SHOW CAUSE
107	57	9	4/17/2025	NOTICE OF FILING DECLARATION REGARDING ACTUAL CONDITION AND VALUE OF DEFENDANT FRENCH PROPERTY
105	56	10	4/16/2025	NOTICE OF FILING SUPPLEMENTAL EXHIBIT AC-1 TO DEFENDANT AFFIDAVIT OF FINANCIAL STATUS
104	55	13	4/16/2025	NOTICE OF FILING DEFENDANT NARRATIVE SUMMARY AND EXHIBIT AZ – TIMELINE OF EVENTS AND SUMMARY OF DISPUTED CLAIMS
103	54	6	4/16/2025	NOTICE OF FILING DECLARATION REGARDING PLAINTIFF PROCEDURAL DISENGAGEMENT AND SELECTIVE PARTICIPATION
102	53	5	4/16/2025	NOTICE OF FILING STATEMENT REGARDING COUNSEL COMPLICITY IN PROCEDURAL MISREPRESENTATION
101	52	5	4/16/2025	NOTICE OF FILING DECLARATION REGARDING IMPLAUSIBILITY OF PLAINTIFF ASSUMPTIONS ABOUT DEFENDANT MEANS AND MOTIVE
100	51	8	4/16/2025	NOTICE OF FILING — CLARIFICATIONS AND SUPPLEMENTAL RECORD MATERIALS 1. TIMELINE OF INVESTOR LOYALTY, SUPPRESSION, AND STRATEGIC RETALIATION; 2. OBSERVATION REGARDING PLAINTIFF USE OF CONVERSATIONAL FILIBUSTERING.
99	50	6	4/16/2025	NOTICE OF FILING DECLARATION REFUTING DEEPGULF FABRICATED NARRATIVE OF AUTHORIZATION AND SUPPORT
98	49	5	4/15/2025	NOTICE OF FILING CLARIFICATION REGARDING THE LEGAL PURPOSE AND PREMATURITY OF COURT-ORDERED MEDIATION
97	48	3	4/15/2025	NOTICE CLARIFYING MEDIATION DEADLINE AND OBJECTION TO PREMATURE SANCTIONS INQUIRY
96	47	9	4/15/2025	NOTICE OF FILING DECLARATION REGARDING PLAINTIFFS FAILURE TO SEEK COSTS AFTER FINAL JUDGMENT
95	46	7	4/15/2025	NOTICE OF FILING DECLARATION REGARDING DENIAL OF MOTION TO STRIKE COMPLAINT AS A SHAM WITHOUT ADJUDICATION ON THE MERITS
94	45	8	4/15/2025	NOTICE OF FILING EXHIBIT REGARDING PLAINTIFF JURISDICTIONAL CONTRADICTIONS – FEDERAL AND STATE COURT PROCEEDINGS

DOCKET	DEFENDANT	PAGES	DATE	ENTRY
93	44	9	4/15/2025	NOTICE OF FILING SUPPLEMENTAL NOTICE — MEDICAL RISK AND REMOTE APPEARANCE JUSTIFICATION
92	43	3	4/14/2025	NOTICE OF PRESERVATION OF DEFENDANT WRITTEN STATEMENT FOR CASE MANAGEMENT CONFERENCE
91	42	3	4/14/2025	NOTICE OF PRESERVATION OF UNREFUTED RESPONSE TO PLAINTIFF STATEMENT OF UNDISPUTED FACTS
90	41	3	4/14/2025	NOTICE OF PRESERVATION OF UNREFUTED RESPONSE TO PLAINTIFF AFFIDAVIT
89	40	8	4/14/2025	NOTICE OF FILING SUPPLEMENTAL EXHIBIT RE JURISDICTIONAL MISREPRESENTATION
88	39	6	4/14/2025	NOTICE OF FILING ADDENDUM A TO DEFENDANT TRIAL FRAMEWORK
87	38	5	4/11/2025	SUPPLEMENTAL STATEMENT REGARDING TRIAL ACCESS AND DUE PROCESS
86	37	19	4/11/2025	NOTICE OF FILING SUPPLEMENTAL APPENDIX IN SUPPORT OF DEFENDANT TRIAL FRAMEWORK
85	36	9	4/10/2025	DEFENDANT MOTION FOR RECONSIDERATION OR CLARIFICATION OF ORDER COMPELLING IN-PERSON TRIAL AND MEDIATION ATTENDANCE
80	35	11	4/9/2025	NOTICE OF FILING DECLARATION REGARDING DOMAIN NAME OWNERSHIP AND USE
79	34	5	4/9/2025	NOTICE REGARDING MEDIATION STATUS AND PENDING MOTIONS
78	33	81	4/8/2025	DEFENDANT CONSOLIDATED RECORD SUMMARY AND TRIAL FRAMEWORK
77	32	12	4/8/2025	NOTICE OF FILING DEFENDANT TIMELINE OF MATERIAL EVENTS (2004–2018)
76	31	24	4/7/2025	NOTICE OF FILING SUPPLEMENTAL DECLARATION REGARDING BOARD MEETING AND EMAIL COMMUNICATION
75	30	8	4/7/2025	DEFENDANT MOTION TO REINSTATE DISCOVERY SCHEDULE AND RECONSIDER TRIAL TIMELINE
74	29	5	4/7/2025	NOTICE OF FILING SUPPLEMENTAL DECLARATION OF DEFENDANT REGARDING THE NECESSITY OF FILINGS AND PRESERVATION OF DEFENSES
73	28	3	4/4/2025	SUPPLEMENTAL DECLARATION REGARDING CASE MANAGEMENT CONFERENCE
72	27	6	4/4/2025	DEFENDANT MOTION TO ENSURE TRIAL FAIRNESS THROUGH RULING ON PENDING MOTIONS, DISCOVERY, AND DUE CONSIDERATION OF THE RECORD
70	26	3	4/3/2025	DEFENDANT RESPONSE IN OPPOSITION TO PLAINTIFF MOTION FOR CONTINUANCE
69	25	75	4/2/2025	NOTICE OF FILING 1. DEFENDANT MOTION TO DISMISS FOR FRAUD ON THE COURT 2. AFFIDAVIT REGARDING PLAINTIFF TOKE OIL & GAS S.A. LACK OF LEGAL EXISTENCE 3. SUPPLEMENTAL DECLARATION REGARDING LACK OF BOARD AUTHORIZATION AND MISREPRESENTATION OF CORPORATE AUTHORITY 4. NOTICE OF FILING EXHIBITS IN SUPPORT OF SUPPLEMENTAL DECLARATION
67	24	17	4/1/2025	DEFENDANT WRITTEN STATEMENT PRIOR TO THE CASE MANAGEMENT CONFERENCE
66	23	6	4/1/2025	DEFENDANT MOTION FOR ADDITIONAL TIME DURING HEARINGS AND AT TRIAL DUE TO THE DIFFERENCE IN DEFENDANT NATIVE AND ACQUIRED LANGUAGES AND HIS PRO SE STATUS
64	22	4	3/27/2025	NOTICE OF HEARING
62	21	10	3/27/2025	DEFENDANT RESPONSE TO PLAINTIFF MOTION TO REQUIRE DEFENDANT TO PAY MEDIATION FEES
61	20	13	3/26/2025	DEFENDANT MOTION TO ENFORCE BY-LAWS AND FOR RELIEF

DOCKET	DEFENDANT	PAGES	DATE	ENTRY
				FROM MEDIATION COSTS
59	19	10	3/24/2025	DEFENDANT RESPONSE TO PLAINTIFFS MOTION TO DISMISS COUNTERCLAIM
57	18	30	3/18/2025	DEFENDANT MOTION FOR LEAVE TO SUPPLEMENT HIS MOTION FOR RECONSIDERATION WITH NEWLY DISCOVERED EVIDENCE
56	17	5	3/13/2025	DEFENDANT RESPONSE IN OPPOSITION TO PLAINTIFFS MOTION TO STRIKE DEFENDANT AFFIRMATIVE DEFENSES
55	16	19	3/13/2025	MOTION FOR RECONSIDERATION
48	15	24	2/20/2025	DEFENDANT ANSWER, AFFIRMATIVE DEFENSES, AND COUNTERCLAIM
46	14	8	2/7/2025	MOTION FOR LEAVE TO FILE A REPLY TO PLAINTIFFS RESPONSES TO DEFENDANTS MOTION TO STRIKE THE COMPLAINT AS A SHAM AND MOTION FOR SUMMARY JUDGMENT
41	13	103	1/21/2025	DEFENDANT RESPONSE TO PLAINTIFFS AMENDED MOTION FOR SUMMARY JUDGMENT
40	12	122	1/21/2025	DEFENDANT RESPONSE TO PLAINTIFF STATEMENT OF UNDISPUTED FACTS
39	11	319	1/21/2025	DEFENDANT RESPONSE TO AFFIDAVIT OF RUSTIN HOWARD IN SUPPORT OF PLAINTIFFS MOTION FOR SUMMARY JUDGMENT
38	10	80	1/21/2025	NOTICE OF FILING SECOND AFFIDAVIT OF MARC MOSZKOWSKI
37	9	48	1/21/2025	NOTICE OF FILING FIRST AFFIDAVIT OF MARC MOSZKOWSKI
36	8	4	1/1/2025	NOTICE OF HEARING
35	7	196	1/1/2025	DEFENDANTS MOTION FOR SUMMARY JUDGMENT AND MEMORANDUM OF LAW IN SUPPORT
24	6	81	6/23/2021	MOTION TO STRIKE THE COMPLAINT AS A SHAM
23	5	4	6/16/2021	MEMORANDUM IN SUPPORT OF DEFENDANT RESPONSE TO MOTION FOR DEFAULT BY THE COURT
22	4	3	6/15/2021	RESPONSE TO MOTION FOR DEFAULT BY THE COURT
11	3	68	6/25/2018	NOTICE OF REMOVAL
10	2	2	6/25/2018	NOTICE OF FILING
9	1	1	6/25/2018	COPY OF MOTION REQUESTING AN ENLARGEMENT OF TIME



Exhibit B — Copy of Plaintiffs’ purported “Exhibit 15” (for identification only)

Note: Plaintiffs’ copy bore no as-admitted exhibit sticker. Any “Exhibit B” label is Defendant’s filing label only. Attachment is for identification only; admissibility is not conceded.

Toke Profit Allocation Table

Toke Profits from all 3 projects available for distribution		1,304,764.22	
Profit should have been allocated:			
Hali Group/Vincente Ximenez		434,921.41	DeepGulf share of Toke Profit diverted to other (not Moszkowski) shareholders
Vogue Lda/Gino Favaro and DeepGulf		434,921.41	
MMoszkowski to DeepGulf		434,921.41	
Profit diverted to MMoszkowski to pay his inheritance taxes should have been DeepGulf profit because MM held shares FBO DeepGulf		345,000.00	MM FBO DG share of profit diverted to other shareholders
		524,842.81	Total diverted to other shareholders

Gino was kicked out of Toke by MM by Aug 2008 and had no dealing with Toke thereafter and no profits were distributed to him directly nor through his entity. DeepGulf acquired his shares.